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95-7589

No. \_\_\_\_\_

**ORIGINAL**

IN THE

SUPREME COURT OF THE UNITED STATES

October Term, 1996

HIGHBERGER, KAKITA, SPENCER & TUNER MAP CT., L. Shieh,

Petitioners,

vs.

Jerold Krieger, et al.,

Respondents.

95-55566 ✓ (9th Cir.)  
CV-93-07310 KN

Supreme Court, U.S.  
FILED

JAN 23 1996

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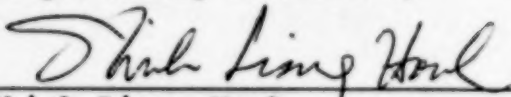
**MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS**

The petitioner, L. Shieh, asks leave to file the attached petition for a writ of certiorari without prepayment of costs and to proceed in forma pauperis. Petitioner has previously been granted leave to so proceed in L. Shieh v. David Ebershoff, et al, S 038440 by the Supreme Court of the State of California. Petitioner's affidavit/declaration in support of this motion is attached hereto.

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⑨

Dated: January 19, 1996

Respectfully submitted,

  
\_\_\_\_\_  
Shieh Liang-Houh

**FIDAVIT OR DECLARATION**  
**IN SUPPORT OF MOTION FOR LEAVE TO PROCEED *1. FORMA PAUPERIS***

I, L. Shieh, am the petitioner in the above-entitled case. In support of my motion to proceed without being required to prepay fees, costs or give security therefor, I state that because of my poverty I am unable to pay the costs of this case or to give security therefor; and I believe I am entitled to redress.

I further swear that the responses I have made to the questions and instructions below relating to my ability to pay the cost of proceeding in this Court are true.

1. Are you presently employed? Yes ☐ No ☒  
a. If the answer is yes, state the amount of your salary or wages per month and give the name and address of your employer.

b. If the answer is no, state the date of your last employment and the amount of salary or wages per month which you received. 4/89; approximately \$7,500.00 per month (gross income)

2. Have you received within the past twelve months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, or other sources? Yes ☐ No ☒

a. If the answer is yes, describe each source of income and state the amount received from each during the past twelve months.

3. Do you own any cash or have a checking or savings account? Yes ☐ No ☒

a. If the answer is yes, state the total value of the items owned.

4. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing) Yes ☐ No ☒

a. If the answer is yes, describe the property and state its approximate value.

5. List the persons who are dependent upon you for support and state your relationship to those persons.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: January 19, 1996.



\_\_\_\_\_  
(Signature)